

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nick Kuczek	Team: Squad #08	CCRB Case #: 202306857	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/04/2023 1:10 AM	Location of Incident: Southwest corner of Clove Road and Narrows Road South	18 Mo. SOL 1/4/2025	Precinct: 122		
Date/Time CV Reported Mon, 07/24/2023 10:51 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 07/24/2023 10:51 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DI Stephen Spataro	00000	939513	120 PCT
2. an officer			
3. DT3 John Weiburg	07841	947598	NBSI MAJOR
4. SGT Paul Dieugenia	02713	946929	NARC SI

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Anthony Cosenza	08839	960394	120 PCT
2. DT3 Robert Martino	00406	958720	NARC SI
3. PO Dwight Briggs	27261	974762	120 PCT
4. SGT Kamil Pac	01897	950994	120 PCT
5. SGT Candice Negron	02206	946639	1ST D C
6. SGT Craig Spataro	00324	947950	121 PCT
7. PO Christopher Orourke	20570	964195	121 PCT
8. PO Michael Konarski	16050	957745	120 PCT
9. PO Vincent Reres	16994	957998	120 PCT
10. SGT Dane Siminon	02696	949666	120 PCT
11. PO Vincent Scott	06581	975809	120 PCT
12. LT Michael Dalbero	00000	948843	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DI Stephen Spataro	Discourtesy: Deputy Inspector Stephen Spataro spoke discourteously to § 87(2)(b)	
B . DI Stephen Spataro	Abuse: Deputy Inspector Stephen Spataro stopped the vehicle in which § 87(2)(b) was an occupant.	
C . DI Stephen Spataro	Abuse: Deputy Inspector Stephen Spataro threatened to arrest § 87(2)(b)	
D . SGT Paul Dieugenia	Abuse: Sergeant Paul Dieugenia failed to provide § 87(2)(b) with a business card.	
E . DT3 John Weiburg	Abuse: Detective John Weiburg searched the vehicle in which § 87(2)(b) was an occupant.	
F . DT3 John Weiburg	Abuse: Detective John Weiburg refused to provide his name to § 87(2)(b)	
G . DT3 John Weiburg	Abuse: Detective John Weiburg refused to provide his shield number to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
H . DT3 John Weiburg	Abuse: Detective John Weiburg threatened to arrest § 87(2)(b)	
I . DI Stephen Spataro	Abuse: Deputy Inspector Stephen Spataro interfered with § 87(2)(b) use of a recording device.	
J . an officer	Abuse: An officer damaged § 87(2)(b) property.	

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via Call Processing System on July 24, 2023.

On July 04, 2023, at approximately 1:10 AM, Deputy Inspector Stephen Spataro of the 120th Precinct drove on the exit-13 exit ramp for Clove Road in Staten Island with his police vehicle emergency lights activated and § 87(2)(b) driving in front of him. DI Spataro passed § 87(2)(b) on the right after § 87(2)(b) allegedly failed to yield to his emergency lights, and § 87(2)(b) honked his vehicle horn at DI Spataro. DI Spataro stopped his vehicle, rolled down his window and allegedly stated, “It’s a police vehicle, you idiot,” (**Allegation A – Discourtesy:** § 87(2)(g) § 87(2)(b) allegedly tried to pass back in front of DI Spataro’s police vehicle and DI Spataro pulled § 87(2)(b) vehicle over (**Allegation B – Abuse of Authority:** § 87(2)(g) § 87(2)(b). Additional officers arrived on scene and DI Spataro threatened to arrest § 87(2)(b) (**Allegation C – Abuse of Authority:** § 87(2)(g) § 87(2)(b) exited and stood at the rear of his vehicle and asked Sergeant Paul Dieugenia of Staten Island Narcotics for a business card, which he did not provide (**Allegation D – Abuse of Authority:** § 87(2)(g) Detective John Weiburg of Staten Island Narcotics opened § 87(2)(b) vehicle door while § 87(2)(b) was at the rear of his vehicle and shined his flashlight inside the vehicle (**Allegation E – Abuse of Authority:** § 87(2)(g) § 87(2)(b) asked Det. Weiburg for his name and shield number, which he did not provide, and Det. Weiburg threatened to arrest § 87(2)(b) (**Allegation F, G, and H – Abuse of Authority:** § 87(2)(g) § 87(2)(b) was then arrested, and DI Spataro ended a video recording on § 87(2)(b) cellphone before giving the cellphone to the officers transporting § 87(2)(b) back to the 120th Precinct stationhouse (**Allegation I – Abuse of Authority:** § 87(2)(g) § 87(2)(b) was released from the 120th Precinct stationhouse and upon retrieving his vehicle back from police custody, the visor mirror was allegedly cracked (**Allegation J – Abuse of Authority:** § 87(2)(g) § 87(2)(b).

§ 87(2)(b) was arrested as a result of this incident.

The investigation obtained Body-worn camera footage (BWC) from Police Officer Dwight Briggs, Police Officer Anthony Cosenza, Police Officer Michael Konarski, Police Officer Vincent Reres, Sergeant Kamil Pac, and Sergeant Dane Siminson, all of the 120th Precinct, From Sergeant Craig Spataro and Police Officer Christopher Oourke of the 121st Precinct, and from Sergeant Candice Negrón of 1st D.C (Board Review 01).

Findings and Recommendations

Allegation (A) Discourtesy: Deputy Inspector Stephen Spataro spoke discourteously to § 87(2)(b).

Allegation (B) Abuse of Authority: Deputy Inspector Stephen Spataro stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Deputy Inspector Stephen Spataro threatened to arrest § 87(2)(b).

Allegation (E) Abuse of Authority: Detective John Weiburg searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (H) Abuse of Authority: Detective John Weiburg threatened to arrest § 87(2)(b).

§ 87(2)(b) provided a statement to the CCRB via telephone on July 28, 2023. On July 04, 2023, at approximately 1:10 AM, § 87(2)(b) drove eastbound in the middle lane on the Staten Island Expressway in Staten Island, while DI Spataro drove next to him in the right lane in an unmarked

police vehicle with its emergency lights activated. Road lighting conditions were dark, and the roads were wet as it had been raining earlier that night. § 87(2)(b) and DI Spataro both exited onto exit-13, a three-lane exit, with § 87(2)(b) driving in the left lane and DI Spataro driving in the middle lane, and DI Spataro shifted partially into the left lane, less than one car length in front of § 87(2)(b). § 87(2)(b) honked his horn, slammed on his brakes, and came to a complete stop, and DI Spataro stopped his vehicle less than one car length in front of § 87(2)(b) vehicle. DI Spataro stuck his head out of the driver window and yelled, "It's a police vehicle, you idiot," and continued driving, shifting back into the middle lane, while § 87(2)(b) continued driving in the left lane. § 87(2)(b) and DI Spataro both approached the intersection of Clove Road and Narrows Road South, and DI Spataro turned to § 87(2)(b) and told him to pull over. § 87(2)(b) had not committed any traffic infractions and drove within the speed limit. § 87(2)(b) pulled over on the right side of Clove Road, started video recording on his cellphone, and set the cellphone on his passenger seat. DI Spataro parked his police vehicle behind § 87(2)(b). § 87(2)(b) had his driver's window rolled down completely and completely rolled down his remaining three side windows. All four of § 87(2)(b) side windows and rear-windshield were tinted 20 percent.

§ 87(2)(b) sat in his vehicle for approximately ten minutes, and several additional police vehicles arrived on scene. DI Spataro exited his police vehicle and he and several uniformed police officers approached § 87(2)(b) driver window. DI Spataro asked § 87(2)(b) for his license and registration and § 87(2)(b) asked him what the reason for the stop was. DI Spataro told § 87(2)(b) that he was being stopped for speeding and § 87(2)(b) asked DI Spataro how fast he was going. DI Spataro then told § 87(2)(b) that he was being stopped for reckless driving. § 87(2)(b) asked DI Spataro how he could have been driving recklessly when DI Spataro was the one who cut him off and DI Spataro stated, "Well, it's not up for debate. Step out of the vehicle or you're going to be arrested." § 87(2)(b) had not given DI Spataro his license and registration yet, as he wanted to clarify the reason for the stop first, and immediately exited and stood at the rear of his vehicle, closing his driver door behind him.

§ 87(2)(b) provided his license and registration to an officer at the rear of his vehicle, and Det. Weiburg told § 87(2)(b) to sit back in his vehicle. As § 87(2)(b) walked to his driver door, Det. Weiburg opened § 87(2)(b) driver door and looked inside the vehicle, but did not ever enter the vehicle with any part of his body. All four of § 87(2)(b) side windows were completely rolled down when Det. Weiburg did this. § 87(2)(b) told Det. Weiburg that he could not search his vehicle and Det. Weiburg responded he was not searching the vehicle. § 87(2)(b) sat in his driver seat with the door open and his feet outside the vehicle on the ground. Det. Weiburg told § 87(2)(b) to place his feet inside the vehicle and § 87(2)(b) asked Det. Weiburg if that was a lawful order. Det. Weiburg asked § 87(2)(b) to place his feet inside the vehicle for a second time and § 87(2)(b) again asked Det. Weiburg if that was a lawful order. Det. Weiburg then asked § 87(2)(b) to place his feet inside the vehicle for a third time and told him that he was "going to get locked up for no reason." § 87(2)(b) asked Det. Weiburg what he could be arrested for and Det. Weiburg stated that § 87(2)(b) could be arrested for disobeying a lawful order and told him that he needed to place his feet inside the vehicle for officer safety.

§ 87(2)(b) placed his feet inside his vehicle and before he could close the driver's door, DI Spataro approached him and told him that he was under arrest for reckless driving. § 87(2)(b) exited his vehicle and an officer handcuffed him, placed him in a marked police vehicle, and transported him to the 120th Precinct stationhouse (Board Review 02).

DI Spataro testified to the CCRB via Microsoft Teams on December 13, 2023. On July 04, 2023, at approximately 12:15 AM, DI Spataro was off-duty, at his home, when he was informed that an individual was shot within the confines of the 120th Precinct. As the commanding officer of the

120th Precinct, it is DI Spataro's responsibility to go on-duty and respond to such incidents to supervise the investigation. DI Spataro got into his assigned unmarked police vehicle, which he keeps at home, and left his home to respond to the scene. DI Spataro was not equipped with a BWC, as his BWC was docked at the 120th Precinct stationhouse.

At approximately 1:10 AM, DI Spataro drove eastbound on the Staten Island Expressway in Staten Island with his emergency lights activated and exited onto the two-lane exit ramp, exit-13 for Clove Road. Road lighting conditions were dark, and the roads were wet as it had been raining earlier that night. DI Spataro drove in the left lane of the exit ramp behind § 87(2)(b) and they both drove approximately 60 miles-per-hour (MPH). DI Spataro did not know what the speed limit was on the exit ramp but was certain that it was below 60MPH, and that § 87(2)(b) was speeding. § 87(2)(b) failed to yield to DI Spataro's emergency vehicle, remaining in the left lane in front of DI Spataro instead of moving into the right lane, and DI Spataro sped up and passed § 87(2)(b) on his right, before driving in front of § 87(2)(b) at approximately 55MPH. § 87(2)(b) followed approximately three feet behind DI Spataro's rear-bumper and excessively honked his horn. § 87(2)(b) proximity to DI Spataro's vehicle was a safety concern to him, and DI Spataro slowed down to approximately 10MPH so that if § 87(2)(b) did rear-end his vehicle, it would not be at a high rate of speed.

DI Spataro and § 87(2)(b) were now off of the exit ramp and in the left lane of the Clove Road service road, which was three lanes. DI Spataro continued driving at approximately 10MPH and § 87(2)(b) entered the middle lane and drove alongside DI Spataro's vehicle, and they both stopped their vehicles. § 87(2)(b) and DI Spataro both lowered their windows and § 87(2)(b) began yelling and cursing at DI Spataro in an angry tone of voice. DI Spataro did not recall what § 87(2)(b) specifically said. DI Spataro told § 87(2)(b) "This is a police car," and told him that he was going to a shooting. DI Spataro did not call § 87(2)(b) an "idiot." DI Spataro's vehicle emergency lights remained activated, and § 87(2)(b) attempted to pass DI Spataro's vehicle on the right side. § 87(2)(b) accelerated his vehicle and began to enter into the left lane in front of DI Spataro, and DI Spataro accelerated his vehicle to prevent § 87(2)(b) from passing him. It is a VTL infraction to pass a vehicle on the right, and because DI Spataro's emergency lights were activated, § 87(2)(b) could not have lawfully passed DI Spataro on the left or the right side, as he needed to yield to his emergency vehicle. DI Spataro spoke to § 87(2)(b) out of his passenger window and told him to pull over and § 87(2)(b) pulled over on the right side of Clove Road.

DI Spataro called for backup to assist him in the vehicle stop and several additional police vehicles arrived on scene. DI Spataro exited his police vehicle, approached § 87(2)(b) at his driver window, and asked him for his license and registration approximately three to four times. § 87(2)(b) did not provide his license and registration and argued about the reason for the vehicle stop. DI Spataro asked § 87(2)(b) to exit his vehicle, as based on DI Spataro's experience as a police officer, § 87(2)(b) non-compliance could be an indication that he was engaged in additional illegal activity. DI Spataro did not have any articulatable reason to believe that § 87(2)(b) was engaged in any specific criminal activity. DI Spataro told § 87(2)(b) "You can step out the car or you can be under arrest." DI Spataro stated this because he wanted to make § 87(2)(b) aware of what the next steps would be if he did not provide his license and registration. Had § 87(2)(b) continued to not comply and provide his documentation, § 87(2)(b) could have been arrested for his previous vehicle infractions of reckless endangerment, reckless driving, speeding, following too closely, unsafe lane-change, and failing to yield to an emergency vehicle. § 87(2)(b) committed the penal law violation of reckless driving by committing three or more hazardous driving violations. § 87(2)(b) committed reckless endangerment by stopping his vehicle in the middle lane of the service road, creating a dangerous driving environment as it was dark and wet out, and they were on a highway. § 87(2)(b) also could have been arrested for OGA, as § 87(2)(b) attempt to

overtake and pass in front of DI Spataro's vehicle, of which had its emergency lights activated, was preventing DI Spataro from performing his duty of responding to a shooting. § 87(2)(b) could not have been arrested for anything else.

§ 87(2)(b) exited and stood at the rear of his vehicle and provided his license and registration to an officer. DI Spataro spoke with other officers and discussed whether § 87(2)(b) should be summonsed or arrested. DI Spataro concluded that they did have probable cause to arrest § 87(2)(b). DI Spataro told § 87(2)(b) that he was under arrest and officers handcuffed him (Board Review 03).

Det. Weiburg testified at the CCRB on December 18, 2023. On July 04, 2023, at approximately 1:10 AM, Det. Weiburg, Det. Martino, and Sgt. Dieugenia responded to a request for backup at a vehicle stop at the intersection of Clove Road and Narrows Road South in Staten Island. Det. Weiburg did not have any knowledge of the reason for the vehicle stop. Det. Weiburg was not equipped with a BWC because members of service assigned to the Staten Island Narcotics command are not issued BWCs.

Upon arrival on scene, § 87(2)(b) exited and stood at the rear of his vehicle. Det. Weiburg opened § 87(2)(b) driver door and shined his flashlight inside but did not ever enter the vehicle with any part of his body. Det. Weiburg did this for safety purposes, as he wanted to ensure that § 87(2)(b) did not have any weapons or drugs inside the vehicle. Det. Weiburg did not have any articulable reason to believe that § 87(2)(b) had weapons or drugs in the vehicle and "assumes that everyone is armed," for his personal safety. Det. Weiburg did not recall if the windows of § 87(2)(b) vehicles were rolled up or down. § 87(2)(b) took issue with this, and stated that Det. Weiburg was searching his vehicle. Det. Weiburg told § 87(2)(b) that he was not searching his vehicle and was looking in the area where he was just sitting.

DI Spataro told § 87(2)(b) to sit back in his vehicle and § 87(2)(b) sat in the driver seat with his feet out of the vehicle and on the ground. Det. Weiburg did not want § 87(2)(b) to return to his vehicle as he believed it was safer to have him outside and at the rear of his vehicle, but because DI Spataro commanded § 87(2)(b) to return to his vehicle, Det. Weiburg believed it would be safer if § 87(2)(b) was sitting in his vehicle with the door closed as he would then be concealed. Det. Weiburg detailed his safety concerns further, stating that § 87(2)(b) vehicle had not been searched and if he had a weapon such as a knife or a gun in the center console, officers were more susceptible to harm with § 87(2)(b) door open and him sitting with his feet out of the vehicle. Det. Weiburg asked § 87(2)(b) to place his feet in the vehicle several times, but could not estimate how many times, and § 87(2)(b) refused. Det. Weiburg told § 87(2)(b) "You're on your way to getting arrested for no reason." Det. Weiburg stated this because if § 87(2)(b) had continued to refuse to comply with his command of putting his feet inside his vehicle, he could arrest him for Obstructing Governmental Administration. § 87(2)(b) not placing his feet in the vehicle obstructed Det. Weiburg and fellow officers' investigation based on the safety risk he posed, and § 87(2)(b) refusal obstructed a lawful command by Det. Weiburg (Board Review 04).

PO Cosenza's BWC captured DI Spataro's and Det. Weiburg's interactions with § 87(2)(b) during the vehicle stop. At 01:14, DI Spataro tells § 87(2)(b) to give him his license, registration, and insurance, and § 87(2)(b) asks DI Spataro what he is being pulled over for, and DI Spataro tells § 87(2)(b) that he is being stopped for speeding and reckless driving. § 87(2)(b) asks DI Spataro how fast he was going and at 01:19, DI Spataro tells § 87(2)(b) to give him his license, registration, and insurance again. § 87(2)(b) asks PO Cosenza if his BWC is activated and asks DI Spataro if he is video recording, and at 01:28, DI Spataro states, "This isn't up for debate. You can step out of the car, or you can be under arrest," and § 87(2)(b) exits his vehicle, closing the door

behind him, and stands at the rear of his vehicle. At 03:30, Det. Weiburg opens § 87(2)(b) driver door and shines a flashlight inside. At 03:34, § 87(2)(b) tells Det. Weiburg that he cannot check his vehicle and that he has no reason to check his vehicle. At 03:45, Det. Weiburg tells § 87(2)(b) that he is not searching his vehicle and that he is looking in the area where he was sitting (Board Review 05).

PO Briggs' BWC captured Det. Weiburg's initial interaction with § 87(2)(b) that led him to threaten to arrest § 87(2)(b). At 04:12, DI Spataro tells § 87(2)(b) that he can go back inside his vehicle if he would like and § 87(2)(b) walks to his open driver door where Det. Weiburg stands. § 87(2)(b) argues with Det. Weiburg about the act of him opening his vehicle door and at 04:50, Det. Weiburg tells § 87(2)(b) to sit in his vehicle. At 05:20, Det. Weiburg and Det. Martino both tell § 87(2)(b) to sit in his vehicle and PO Briggs walks away. At 05:38, PO Briggs walks back towards § 87(2)(b) vehicle and § 87(2)(b) sits in the driver seat of his vehicle with his feet outside of the vehicle on the ground (Board Review 06).

§ 87(2)(b) personal cellphone video captured the continuation of Det. Weiburg's interaction with § 87(2)(b) at his vehicle and Det. Weiburg's threat to arrest him. At 06:30, after sitting in the driver seat of his vehicle with his feet outside of the vehicle on the ground, § 87(2)(b) picks up and holds his video recording cellphone. At 06:33, § 87(2)(b) states that he does not have to close his door and states that he is sitting in his vehicle. Det. Weiburg tells § 87(2)(b) to swing his feet in the vehicle. At 06:37, § 87(2)(b) asks if by law he has to close his door and Det. Weiburg states that to secure the scene he wants him to place his feet inside the vehicle and close the door. At 07:05, Det. Weiburg tells § 87(2)(b) to swing his feet inside his vehicle in order to secure the scene and for his and everyone else's safety. At 07:18, Det. Weiburg again tells § 87(2)(b) to sit in his vehicle and close his door, to which § 87(2)(b) refuses. At 07:21, Det. Weiburg states, "You're on your way for getting arrested for no reason." At 07:27, Det. Weiburg tells § 87(2)(b) that he is being disorderly and disobeying lawful orders during a traffic stop, and states that his lawful order is for § 87(2)(b) to swing his feet in and let him close the door for his safety. At 08:00, § 87(2)(b) places his feet in the vehicle (Board Review 07).

According to NY CLS Veh & Tr § 1212, a person shall be guilty of reckless driving when they operate a motor vehicle in a manner which unreasonably interferes with free and proper use of the public highway, or unreasonably endangers users of the public highway, and every person violating this provision shall be guilty of a misdemeanor (Board Review 08).

According to NY CLS Penal § 195.05, a person is guilty of obstructing governmental administration when they intentionally obstruct, impair, or prevent the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act (Board Review 09).

According to *People v. Joseph*, 156 Misc. 2d 192 (1992), to be guilty of obstruction of governmental administration, a person must take a physical act with intent to prevent an articulable and specific official function that is both authorized and lawful (Board Review 10).

According to *People v. David L.*, 56 N.Y.2d 698, in the absence of any independent indication of criminality, or of danger to the officer themselves, they are not entitled to take the additional step of opening the doors of a vehicle to look inside (Board Review 11).

According to *People v. Hernandez*, 238 A.D.2d 131, a vehicle search has been conducted when an officer breaches the plane of the vehicle doorway (Board Review 12).

§ 87(2)(g)

As mentioned above, DI Spataro was not equipped with a BWC during this incident § 87(2)(g)

§ 87(2)(g)

As mentioned above, DI Spataro was not equipped with a BWC during this incident § 87(2)(g)

It is undisputed that after § 87(2)(b) exited his vehicle and closed the driver door behind him, Det. Weiburg opened § 87(2)(b) driver door and shined his flashlight inside the vehicle to ensure that § 87(2)(b) did not have any weapons or drugs inside the vehicle. § 87(2)(g)

§ 87(2)(g)

Furthermore, DI Spataro himself ordered § 87(2)(b) to return to his vehicle, but never specified the way he should enter or sit. § 87(2)(g)

Allegation (D) Abuse of Authority: Sergeant Paul Dieugenia failed to provide § 87(2)(b) with a business card.

Allegation (F) Abuse of Authority: Detective John Weiburg refused to provide his name to § 87(2)(b)

Allegation (G) Abuse of Authority: Detective John Weiburg refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) stated that while at the rear of his vehicle, he asked Det. Martino for his name and shield number and Det. Martino told him that he would write his name and shield number down on a piece of paper, which he did, and handed to § 87(2)(b) then asked Det. Weiburg for his name and shield number and told him that he could write it down on the back of the piece of paper that Det. Martino wrote his information on and handed the piece of paper to Det. Weiburg. Det. Weiburg did not write his name or shield number on the piece of paper, did not verbally

provide his name or shield number to § 87(2)(b) and did not ever return the piece of paper to § 87(2)(b) (Board Review 02).

Det. Martino testified at the CCRB on January 31, 2024. On July 04, 2023, at approximately 1:10 AM, he, Det. Weiburg, and Sgt. Dieugenia responded to a vehicle stop at Clove Road and Narrows Road South in Staten Island. Det. Martino was not equipped with a BWC because members of service assigned to the Staten Island Narcotics command are not issued BWCs.

While on the scene, § 87(2)(b) asked Det. Martino for a business card. Det. Martino had run out of business cards and walked to his police vehicle to get a piece of paper to hand-write his information on for § 87(2)(b). Det. Martino heard § 87(2)(b) request for a business card from Sgt. Dieugenia but did not recall if § 87(2)(b) requested information from any other officer. Det. Martino did not recall if Sgt. Dieugenia directed him to write his information down on the piece of paper in addition to his own. Det. Martino wrote down his name, rank, shield number, command, and command phone number on the piece of paper, and then wrote down Sgt. Dieugenia's and Det. Weiberg's name, rank, and command on the piece of paper as well. Det. Martino did not write down Sgt. Dieugenia's or Det. Weiberg's shield numbers on the piece of paper because he did not know them.

Det. Martino walked over to § 87(2)(b) and handed him the piece of paper. Det. Martino did not believe that Sgt. Dieugenia or Det. Weiberg ever looked at the piece of paper. Det. Martino did not know if the piece of paper remained in § 87(2)(b) hand or if he handed it to another officer.

After returning to their police vehicle and leaving the scene, Det. Martino told Sgt. Dieugenia and Det. Weiberg that he wrote down their information for § 87(2)(b) on the piece of paper for them (Board Review 13).

Sgt. Dieugenia testified at the CCRB on January 19, 2024, and his testimony was consistent with that of Det. Martino's. Sgt. Dieugenia was not equipped with a BWC because members of service assigned to the Staten Island Narcotics command are not issued BWCs. After § 87(2)(b) asked Sgt. Dieugenia for a business card, which he may have been depleted of, Sgt. Dieugenia directed Det. Martino to write his, Det. Martino, and Det. Weiberg's information down on a piece of paper for § 87(2)(b). Sgt. Dieugenia believed that he saw Det. Martino hand § 87(2)(b) a piece of paper at some point during the incident. Sgt. Dieugenia assumed that the piece of paper had his information written down on it but did not ever look at the piece of paper to confirm this. Sgt. Dieugenia did not know if Det. Weiberg would have been present to hear him direct Det. Martino to write down their information for § 87(2)(b) (Board Review 14).

Det. Weiburg stated that § 87(2)(b) asked him for his name and shield number and handed him a piece of paper to write it down on. Det. Weiburg told § 87(2)(b) that he would write his name and shield number down on the piece of paper. Weiburg did not write his name and shield number down on the piece of paper and did not look at the piece of paper but handed it back to § 87(2)(b) at some point. Det. Weiburg did not write down his information for § 87(2)(b) because he was arguing with him about placing his feet in the vehicle and then was placed under arrest. Det. Weiburg did not recall when he handed the piece of paper back to § 87(2)(b) but stated that he did so prior to § 87(2)(b) being arrested.

After returning to their police vehicle at the conclusion of this incident, Det. Martino told Det. Weiburg that he wrote his and Det. Weiburg's name and shield number on the piece of paper for § 87(2)(b) (Board Review 04).

According to NYPD Administrative Guide 304-11, uniformed members of service must courteously state their rank, name, shield number, and command, or otherwise provide them to anyone who requests it (Board Review 15).

According to NYPD Administrative Guide 304-11, an officer is required to provide a business card to any person upon request. (Board Review 15).

According to NYC Administrative Code 14-174, an officer is required to provide a business card to any person upon request. In the case that an officer's pre-printed card supply has been depleted, a generic card shall be provided and include at minimum: The name, rank, shield number, a space to write the command of the officer (which the officer will provide), as well as a phone number for the 311-customer service center and an indication that such phone number may be used to submit comments about the encounter between such officers and such person (Board Review 16).

PO Cosenza's BWC captured § 87(2)(b) requests for business cards from Det. Martino and Sgt. Dieugenia. At 03:14, § 87(2)(b) asks Det. Martino what his name is, and Det. Martino states his name and shield number. At 03:20, § 87(2)(b) asks Det. Martino for a business card and Det. Martino tells him that he will write his information down for him and walks away. At 03:28, § 87(2)(b) asks Sgt. Dieugenia for a business card and Sgt. Dieugenia tells him that he will write his information down for him (Board Review 05).

PO Briggs' BWC captured Det. Martino provide § 87(2)(b) with his hand-written information and § 87(2)(b) request for Det. Weiburg's name and shield number. At 04:50, § 87(2)(b) speaks to Det. Weiburg outside of his vehicle and Det. Martino approaches and hands § 87(2)(b) a piece of paper and states, "Here's my contact information for you." At 04:55, § 87(2)(b) asks Det. Weiburg for his name and shield number and Det. Weiburg tells § 87(2)(b) that he will write it down for him and § 87(2)(b) hands Det. Weiburg the piece of paper (Board Review 06).

§ 87(2)(b) personal cellphone video captured his request for Det. Weiburg's name and shield number at 05:40 and is audibly louder and clearer than the above-mentioned BWC (Board Review 07).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Allegation (I) Abuse of Authority: Deputy Inspector Stephen Spataro interfered with § 87(2)(b) use of a recording device.

As mentioned above, § 87(2)(b) began video recording on his cellphone after being stopped by DI Spataro. § 87(2)(b) stated that after being released from the 120th Precinct stationhouse and retrieving his cellphone, § 87(2)(b) viewed his cellphone video recording, and saw that after being arrested, DI Spataro picked up his cellphone from the front passenger seat and ended the video recording (Board Review 02).

§ 87(2)(b) personal cellphone video captured the moments just after his arrest and at 08:35, DI Spataro picks up § 87(2)(b) cellphone from his vehicle seat and ends the video recording (Board Review 07).

DI Spataro stated that after § 87(2)(b) was arrested, he picked up his cellphone which sat in his vehicle, ended the video recording, and handed the cellphone to § 87(2)(b) arresting officer, PO Cosenza, to take back to the 120th Precinct stationhouse. DI Spataro ended § 87(2)(b) video recording because other officers had their BWCs on so there was no reason for § 87(2)(b) video to continue recording, an individual cannot have a cellphone on them when they are being arrested, and an officer is obligated to end a video recording when a person is arrested (Board Review 03).

According to NYPD Administrative Guide Procedure 304-21, individuals have a right to lawfully record police activity. This right to record can be limited based upon officer safety concerns or when a violation of law is committed. Officers cannot intentionally block or obstruct recording devices when there is no legitimate law enforcement reason to do so (Board Review 17).

It is undisputed that after § 87(2)(b) was arrested, DI Spataro picked up § 87(2)(b) cellphone from the seat of his vehicle and ended his video recording. § 87(2)(g)

Allegation (J) Abuse of Authority: An officer damaged § 87(2)(b) property.

§ 87(2)(b) stated that upon release from the 120th Precinct stationhouse and having his vehicle returned from police custody, § 87(2)(b) driver visor mirror had a crack in it. The mirror was not cracked prior to this incident (Board Review 02).

PO Koniarski's BWC captured him drive § 87(2)(b) vehicle from Clove Road and Narrows Road South to the 120th Precinct stationhouse. At 00:55, PO Koniarski sits in the driver seat of § 87(2)(b) vehicle and at 01:08, reaches his right hand up and out of frame in the direction of the visor. At 02:12, PO Koniarski begins driving § 87(2)(b) vehicle. At 15:00, PO Koniarski arrives at the 120th Precinct stationhouse and exits § 87(2)(b) vehicle, and at 16:20, enters the stationhouse (Board Review 18).

PO Koniarski testified at the CCRB on January 08, 2024. On July 04, 2023, at approximately 1:10 AM, he responded to a request for backup at a vehicle stop at the intersection of Clove Road and Narrows Road South in Staten Island. Upon arrival on scene, either DI Spataro or another supervising member of service handed him the keys to § 87(2)(b) vehicle and told him to drive it back to the 120th Precinct stationhouse.

PO Koniarski entered § 87(2)(b) vehicle, drove it back to the stationhouse, and parked it in the rear parking lot. PO Koniarski entered the stationhouse, handing § 87(2)(b) vehicle keys to the front desk, and did not have any further interaction with § 87(2)(b) vehicle. PO Koniarski did not observe any visible damage to § 87(2)(b) vehicle visor mirror, did not take any actions that could have caused damage to the visor mirror, and did not see any other officer do so during this incident.

PO Koniarski was presented with his own BWC. The footage was played from 01:00 to 01:11, capturing PO Koniarski lift his right hand upward and out of frame while sitting in § 87(2)(b) vehicle. PO Koniarski did not independently recall what he was doing when he made this motion but believed he may have been adjusting the rear-view mirror. PO Koniarski did not know if he was closing the visor or if he made physical contact with it (Board Review 19).

DI Spataro, Det. Weiburg, Det. Martino, and Sgt. Dieugenia all stated that they did not take any actions that could have damaged § 87(2)(b) vehicle visor mirror, did not observe any other officer do so, and did not ever observe any damage to § 87(2)(b) vehicle (Board Review 03, 04, 13, 14).

§ 87(2)(g)
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 20).
- DI Spataro has been a member of service since July 11, 2005, and has been a subject in eleven CCRB complaints and eighteen allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
- Det. Weiburg has been a member of service since July 08, 2008, and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
- Sgt. Dieugenia has been a member of service since July 08, 2008, and has been a subject in twelve CCRB complaints and twenty-eight allegations, of which three were substantiated.:
 - 201902036 involved substantiated allegations of Abuse of Authority – Entry of Premises, Abuse of Authority – Search of Premises, and Abuse of Authority – Failure to provide

RTKA card against Sgt. Dieugenia. The Board recommended Command Discipline – B for all three allegations and the NYPD imposed such. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 09, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 24).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

Investigator:	Nicholas Kuczek	Inv. Nicholas Kuczek	02/16/2024
	Signature	Print Title & Name	Date

Squad Leader:	Ethan De Angelo	IM Ethan De Angelo	02/16/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date